

25STC16447 25STC16447

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 25STC16447 Hearing Date: August 7, 2026 Dept: 732

John Devenanzio v. David Miklofsky, et al.

Friday, August 7, 2024

CASE NUMBER: 25STC16447

UNOPPOSED

Defendants David Milklosfsy and TheCombined, LLC's Motion for Pro Hac Vice Admission of Moshe Y. Warga

Facts: Plaintiff John Devenanzio alleges Defendant David Milklosfsy worked with Plaintiff as both a business manager and agent. Plaintiff alleges Milklosfsy improperly/prematurely collected certain commissions/fees and transferred them to Defendant TheCombined, LLC. Plaintiff also alleges Defendants hold certain access information for six (6) Bitcoins owned by Plaintiff, and refuses to turnover access.

Procedural History: On November 13, 2024, Plaintiff filed a 13 cause of action complaint:

1. Breach Of Fiduciary Duty
2. Conversion
3. Unjust Enrichment
4. Constructive Trust

5. Resulting Trust

6. Civil Theft

7. Negligence 8. Breach Of Contract

9. Promissory Estoppel

10. Intentional Misrepresentation

11. Negligent Misrepresentation

12. Constructive Fraud

13. Accounting

On March 20, 2026, David Milklosfsy answered and filed a cross-complaint against John Devenanzio for six causes of action:

1. Breach Of Contract

2. Breach Of Implied Contract

3. Promissory Estoppel

4. Intentional Misrepresentation

5. Negligent Misrepresentation

6. Unjust Enrichment

Analysis

PRO HAC VICE

Pro hac vice admission in California is governed by California Rules of Court, Rule 9.40. To be admitted pro hac vice, one must be “a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (California Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.”

An attorney seeking pro hac vice admission must file a verified application in both court and the State Bar of California establishing:

(1) [t]he applicant's residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a member in good standing in those courts; (4)[t]hat the applicant is not currently suspended or disbarred in any court; (5)[t]he title of court and cause in which the applicant has filed an application to appear as counsel¿pro hac vice¿in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6)[t]he name, address, and telephone number of the active member of the State Bar of California who is attorney of record. (California Rules of Court, rule 9.40(d).)

The application of Moshe Y. Warga complies with California Rules of Court, Rule 9.40. Warga was granted pro hac vice appearance privileges in one other case in Broward County Florida [Declaration of Moshe Warga.] The application includes representation of payment to the California State Bar. [Declaration of Chaim Gordon.]

Accordingly, the motion is GRANTED.

Dated: August 7, 2026

Hon. Richard Kemalyan

Judge of the Superior Court